Pre-Convention Work Shops 2022
Research & Education Department

Large Office Issues
Function 1 / Automation /RI-399

APWU

American Postal Workers Union, AFL-CIO



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Large Office Issues
(Function 1 / Automation / RI-399

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ONGOING VIOLATIONS IN FUNCTION 1 EFFECTIVE AND EFFICIENT WAYS TO MEET THESE CHALLENGES

- 204B violations as it relates to Lead Clerk Duties
- DBCS Staffing MOU Violations
- 37.3.A.1 and 7.1.B.6 Review
- Posting, Reversions, Abolishments, MDAT
- RI-399 and the Dispute Resolution Procedure
- Article 7.2 Crossing Crafts

SETTLEMENT AGREEMENT

BETWEEN THE

UNITED STATES POSTAL SERVICE

AND THE

AMERICAN POSTAL WORKERS UNION, AFL-CIO

RE: Q10C-4Q-C 15311411 / INQC20150878

Recently the parties met during pre-arbitration discussions regarding the above referenced dispute. The interpretive issue in this dispute, as referred from local grievance K10C-4K-C 12375170 / APWU # 1201EHCA75, is whether the MOU Re: *Clerk Craft Jobs,* Section 2.D requires that if the 204-B detail assignment exceeds the 90 day limit, the supervisory work performed by the 204-B, on the 91st day and beyond, must be considered bargaining unit work.

The parties agree that there is no interpretive issue regarding the 90 day limitation pursuant to Section 2.D of the MOU and the October 20, 2011 Q&As. Alleged violations should be investigated based on local fact circumstances, and the Union may file grievances in accordance with Article 15.

Accordingly, the parties agree that any case held pending this national dispute will be resolved in accordance with this agreement and local fact circumstances.

Rickey R. Dean
A/Manager Contract Administration
United States Postal Service

Date: 2/4/2016

Lamont Brooks
Assistant Director Clerk Division
American Postal Workers Union
(AFL-CIO)

Date: 2/4/2016

Clint Burelson
Director, Clerk Craft
American Postal Workers Union, AFL-CIO
1300 L Street NW
Washington, DC 20005-4128

Re: USPS# Q10C-4Q-C 13207681/ APWU# HQTC20130411
Washington, DC 20260-4100

Dear Clint:

Recently, we met for pre-arbitration discussion on the above referenced grievance. The issue in this grievance is whether an Officer-in-Charge (OIC) assignment is subject to the same restrictions as those imposed on a 204-B assignment under the MOU Re: Clerk Craft Jobs, Section 2.0.

As full and complete resolution of this case, the parties mutually agree to the following:

> The duration provision in Section 2 D) of the Clerk Craft Jobs MOU which states, "The usage of a 204-B in this exception is normally limited to no more than 90 days," is applicable to an OIC assignment except when the assignment is to an installation that employs bargaining unit employees not represented by the APWU and the postmaster position is the only supervisory position.

The parties agree that any grievances pending the outcome of this case shall be resolved pursuant to the applicable agreement stated herein and any issue of remedy, where appropriate, through application of the local fact circumstances.

Michael R. Makar
Manager, Field Labor Relations
United States Postal Service

Clint Burelson 4/9/2015

Clint Burelson
Director, Clerk Craft
American Postal Workers Union (AFL-CIO)

204B VIOLATIONS -

- **What we commonly refer to as the "204B MOU" is actually the creation of the Lead Clerks to replace the use of 204Bs to supervise clerks. (pages 401 - 404 of the 2021 – 2024 Collective Bargaining Agreement)**
- **Lead Clerks should not be Level-7 clerks still only performing the same Level-6 work. They should also be performing non-managerial and non-supervisory EAS duties, which are now bargaining unit work (BUW), in accordance with the Clerk Craft Jobs MOU.**
- **Keep that in mind. Why? Because the remedy is an Article 1.6 remedy where the union argues that the 204B, as an EAS employee is performing the duties of the Lead Clerk.**
- **The Level-6 employee already was on duty and performed other duties. The 204B performed up to 8 hours or more of BU work.**

THE CRAFT DESIGNATION OF THE 204B DOES IT MATTER?

ABSOLUTELY NOT! **What matters is: Are these 204Bs supervising clerks - Are they performing TACS duties – Are they assigning clerk duties and machine assignments – Are they directing Clerk PSEs?**

Article 7.1.B.1 designates PSEs as non-career bargaining unit employees (pg. 19 of the 2021 – 2024 Collective Bargaining Agreement).

The above duties are all examples of bargaining unit duties and those hours are 1.6 violations at the OT rate for all hours worked supervising clerks.

204B CLERKS CAN BE ASSIGNED TO SUPERVISE MAIL HANDLERS OR CARRIERS.
NO VIOLATION…WHY?

- **Remember what the issue is and does it violate the National Agreement?**
- **Are those Lead Clerk duties?**
- **No. Therefore, there is no BUW violation.**
- **Lead Clerks have no authority over other Crafts.**

WHAT WE NEED TO PROVE AND INVESTIGATE :

- An actual vacancy exists (including an EAS detail vacancy)
- The vacancy is at least 14 days or more and no more than 90 days (with limited over 90-day exceptions, i.e., military leave, paternity leave or similar situations)
- That a vacancy does not exist and the remedy begins from Day 1
- That the 204B matches that vacancy and an additional 204B is not justified by the same vacancy
- That the 204B was paid EAS pay
- That the 204B performed Lead Clerk BUW duties
- The amount of time the clerks were actually supervised by clerks

DOCUMENTS TO REQUEST:

- Copy of 1723s prior to the “claimed” 90 day assignment, during and after the 90 day assignment for ongoing grievances
- Copy of the HL reports for the time period for suspected details
- TACS logs reports
- LTATS reports
- Form 50 if necessary to verify craft and status if necessary
- Standard Position Descriptions of Clerk Craft jobs

DOCUMENTS – 204B VIOLATIONS CONT'D

- Detailed witness statements from clerks proving performance of Lead Clerk Duties.
- "He/she told me to go over to breakdown."
  OK, that's what? Two (2) minutes of documented BUW.
- If witnesses are hesitant to write a statement, you can interview the witnesses and have them sign the interview sheet.
- If the 204B was doing additional clerks duties not assigned to Lead Clerks, that, of course, can be included in that service day. Be cautious, Should you include throwing priority mail into that 1.6 grievance or file separately?
- Your 1.6 remedy: Article 1, page 2 of the 2020 JCIM.

DOCUMENTS – 204B VIOLATIONS CONT'D

- Let us handle the argument that " no one was harmed, everyone was maxed out" at the higher level of the grievance procedure.
- "MAKE THE CRAFT AND THE UNION WHOLE IN EVERYWAY TO INCLUDE...." SHOULD ALWAYS START THE BEGINNING OF YOUR NARRATIVE FOR YOUR REMEDY!

DBCS STAFFING

The August 24, 2016 sign off on DBCS staffing is clear:

- **The intent of the sign off is that the normal staffing on the DBCS machine is two (2) clerks per machine.**
- **No Clerk should be scheduled to work on a DBCS Machine alone for an entire shift without having an additional clerk assigned as the clerk's "partner" to be used when it is necessary for rotation and relief no matter how small the mail volume or run may be.**
- **Management should be able to demonstrate that if, for example, 5 DBCS machines are anticipated to be running simultaneously during the crew's shift, then a total of 10 clerks should be assigned to either the DBCS machine or allied duties in the OCR-BCS-DBCS Area. Note: Not in Express Mail, Not in manual mail, and not in the Flats or Automated Parcel Area.**

SETTLEMENT AGREEMENT BETWEEN THE UNITED STATES POSTAL SERVICE AND THE AMERICAN POSTAL WORKERS UNION, AFL-CIO

RE: Q10C-4Q-C16130532 - APWU #HQTG20160085 - DBCS Staffing

Recently the parties met at Step 4 of the grievance/arbitration process to discuss the above referenced grievance. The primary issue in this dispute is whether the current Delivery Bar Code Sorter System (DBCS) normal staffing of two (2) clerks per machine should be a minimum requirement to address certain safety and ergonomic issues as identified by the APWU.

The parties are in agreement that pursuant to Article 14, Section 1 *"It is the responsibility of management to provide safe working conditions in all present and future installations and to develop a safe working force."* In accordance with the Employee and Labor Relations Manual (ELM), Sec tion. 891, *Authority,· 'The Postal Service complies with applicable federal laws, regulations, and OSHA guidance materials regarding ergonomics."*

The parties further agree that the 2012 JCIM, Article 37, page 76. *OCR- BCS- DBCS STAFFING* Questions and Answers , address the only exceptions to the normal staffing of two (2) Mail Processing Clerks on the DBCS at all times. The exceptions described in the JCIM Q&As must not be considered an alternative to the scheduling of 2 Mail Processing Clerks on the DBCS. During the periods described in the JCIM Q&As , the parties further agree the second Mail Processing Clerk may perform allied duties as assigned in the OCR-BCS-DBCS area.

This settlement agreement addresses minimum staffing, and is not intended to impact those offices where there have been agreements and past practices involving more than two clerks per machine {due to unique rotations or other local factors.)

To further this *effort,* the parties agree to schedule a special meeting of the Safety & Health Committee at the national level within ninety (90) days after the signing of this agreement. At the meeting , the Safety & Health Committee will discuss the establishment of a task force to investigate and address safety issues specific to tl1e DBCS. This task force will include subject matter experts. Any case{s) held pending this national dispute will be resolved in accordance with this agreement and based on local fact circumstances.

SUGGESTED DOCUMENTS AND THEIR RELEVANCE TO PROVE OUR CASE:

- **Daily DBCS Machine Assignment Sheet** – How many clerks assigned/scheduled to the DBCS area on a daily basis?
- **Employee on the clock report by Operation, by day**, for the time period of the class action, listing the times of the report and the facility and Operation numbers.
- **Run Reports** – How many machines were running?
- Match the machine assignment with employee on the # of clerk with Employee on the Clock Report by Operation.
- **Clerk Statements** – How long did they work alone, and who was scheduled to relieve them, and where was the "partner" working?
- **Copies of 1767s** in reference to understaffing on the DBCS machine.

NECESSARY DOCUMENTS DBCS STAFFING
CONT'D

- **RFI for a total claim count for all CA-2, CA-2a's filed YTD in the last 3 years for mail processing clerks working in the facility.**

  Note: You are not requesting CA-2 forms or names of employees.

- **Total MSD (muscular skeletal disease) claims filed YTD in the last 3 years.**
- **Copy of any Labor/Mgt or Safety meetings where staffing has been discussed.**
- **Stipulation of how many local S/H meetings have been held in the past year.**
- **Copy of OSHA Complaints filed by union or employees.**
- **Copy of all bid reversions or abolishment for duty assignment in MP on DBCS machine.**

DBCS STAFFING RFI CONTINUED

- **Copies of reverted positions**, if applicable, of employees who retired or were separated.
- **Comparative MP P/L work schedules** from years prior, if possible showing the decline in staffing in automation
- **Employee Listing Report** for the facility for each year in the past 5 years.
- Make sure you **cite Article 3** in the case since management is the one who hires and fires the workforce.
- **Employee Compliment in MP** YTD for the last 5 years.
- Your suggestions for additional documents?

LIST OF SUPPORTIVE DOCUMENTS.

When adding these attachments to your file, you must argue what they say and how they support the position of the union.

A DOCUMENT SUPPORTS AN ARGUMENT – IT DOES NOT MAKE A WRITTEN ARGUMENT AS MANDATED IN ARTICLE 15 OF THE CBA.

- 812.32 ELM
- 894.14 ELM
- DBCS Staffing
- DBCS Processing Methodology
- DOL ERGO Report to USPS
- ELM Section 890
- JCIM Staffing Language
- Machine Rotation
- Milwaukee Award
- OSHA Tallahassee

SAMPLE STATEMENTS FROM MP CLERKS

I worked alone from this time to this time, on this date.

I worked alone on the machine all day long for the shift of___ (date)

During that time I had to sweep and load at the same time, etc. etc.

I was assigned to DBCS machine # ___

At no time was I allowed any time to rotate to allied duties.

I asked my supervisor if I had a partner and the response was _____.

I was instructed not to shut down the machine to prevent loading and sweeping at the same time.

I normally work this city run every day and seldom have a partner.

I was first assigned to run #12 by myself and when I finished I ran #13.

DON'T FAIL TO REBUT THE USPS ARGUMENTS

- Clerks called in sick – Are those clerks listed as clerks that would have been assigned to the DBCS?
- Ask for all documents that support their claim.
- Ask for copies of denied AL to demonstrate "skeleton staffing"
- Copy of YTD SL and AL and YTD goals SPLY

APPROPRIATE REMEDY

CEASE AND DESIST

PAYMENT AT THE APPROPRIATE RATE FOR THE CLERK(S) WHO SHOULD HAVE BEEN STAFFING THE MACHINE PROPERLY

ADDITIONAL PAYMENT TO THE CLERK WHO WORKED THE DBCS ALONE

Function 1 – General Expediter

ON AUGUST 7, 2020, THE POSTMASTER GENERAL ANNOUNCED A PLAN TO REALIGN THE ORGANIZATION TO PROVIDE GREATER FOCUS ON THE CORE ASPECTS OF OUR BUSINESS AND TO GIVE US A BETTER CHANCE FOR FUTURE SUCCESS.
AS PART OF THIS ORGANIZATIONAL REALIGNMENT, THE DECISION HAS BEEN MADE TO TRANSFER SUPERVISION OF BARGAINING UNIT EMPLOYEES ASSIGNED TO LOGISTICS COMPONENTS OF DOCK OPERATIONS, E.G., GENERAL EXPEDITORS AND RAMP CLERKS.

THIS CHANGE WILL NOT RESULT IN ANY IMPACT TO THE CURRENT STATUS OF BARGAINING UNIT EMPLOYEES OR ANY CONTRACTUAL PROVISIONS. INSTALLATIONS/BID CLUSTERS WILL REMAIN THE SAME; HOWEVER, UNIQUE FINANCE NUMBERS HAVE BEEN CREATED FOR EACH NEWLY ESTABLISHED LOGISTICS OPERATION. AFFECTED BARGAINING UNIT EMPLOYEES WILL RECEIVE A PS FORM 50, *NOTIFICATION OF PERSONNEL ACTION*, IN THE MAIL, WHICH WILL INFORM THEM OF THEIR NEW FINANCE NUMBERS. ADDITIONAL ADMINISTRATIVE CHANGES, FOR EXAMPLE, CHANGES IN PAY LOCATIONS, MAY ALSO OCCUR AS A RESULT OF THIS CHANGE.

THE POWER OF MDAT ARTICLE 37.3.A.1

“Every effort will be made to create desirable duty assignments from all available work hours for career employees to bid.” **page 161 of he 2021 – 2024 NA**

SYNOPSIS OF THE MDAT PROGRAM

MDAT – Maximization Duty Assignment Tool

MDAT software program available at Members Only tab on APWU.org website for Local Presidents and their designees.

The union requests necessary TACS reports in CSV format in electronic format via email or on a flash drive (encrypted if requested).

MDAT GENERATES THREE REPORTS

1. **TACS recap report** in PDF format for time period requested by Union
2. **Colored chart** mapping out the hours and noting split shifts if applicable
3. **Final Report** lists the number of possible duty assignments

Note: MDAT will only show total work hours based upon 8 per day/40 hours per week

The Union decides what they believe the reports will demonstrate and requests the time period and list of employees, name of facility, and tour in the RFI.

Make sure you ask for the TACS reports in CSV and PDF format.

Reports with DA code110 (FT clerk) only may be flawed.

Hours entered for ten (10) FT clerks may only demonstrate eight (8) FTR/40 hour duty assignments.

Why? Holiday, overtime, and leave are not work hours.

WAYS TO USE MDAT PROGRAM IN FUNCTION 1

- **Make an existing duty assignment more desirable.**
- **Demonstrate retreat rights for Clerks excessed outside the Craft or Installation.**
- **Conversion of PSEs to career in accordance with the Residual Vacancy – Clerk Craft MOU by creating residual vacancies to be posted on eReassign (pg. 374-376).**
- **We can use MDAT with Clerk Craft Jobs MOU, Clerical Work MOU, Job Audits MOU, New Positions and New Work MOU**

HERE'S MORE

- **Demonstrate that the "work still exists"** for reverted or abolished duty assignments
- **Demonstrate retreat rights** to employee excessed outside the section within the bidding installation.
- **Calculate 7.2 Cross Craft hours** by manually entering hours to demonstrate duty assignments. 1.6 hours may be combined with these hours in offices with multiple and ongoing BUW violations.
- **Create FT duty assignments** from clerk work hours used by "limited duty" employees that have been "temporarily" injured for more than one (1) year with no prognosis of returning to full duty.

ARE

THERE

ANY

QUESTIONS???

REGIONAL INSTRUCTION 399 (RI-399)

WHAT CHANGED IN THE UPDATED REGIONAL INSTRUCTION 399 AND THE DISPUTE RESOLUTION PROCEDURE (DRP) ???

UPDATED RI-399
DISPUTE RESOLUTION MOU

After 26 years of the "black hole" that the RI-399 DRP had become and tying up many jurisdictional issues and leaving the uncertainty of which craft keeps the work, the APWU, NPMHU and the USPS agreed to this updated and improved RI-399 Dispute Resolution Process (DRP).

PRINCIPLES IN THE UPDATED MOU

THE PARTIES AGREED TO THE FOLLOWING:

- **Improves the RI-399 procedures.**
- **Cleans up the RI-399 dispute dockets.**
- **Puts updated inventories in place.**
- **Protects existing and future Clerk work.**
- **Separate agreement for the monetary remedy.**

UPDATED TIME LINES AND PROCEDURES

<u>Paragraphs 10,11 and 12 of the MOU</u>

Adds clear deadlines and procedures.

- **Local disputes filed within 21 days to the LDRC from first becoming aware of the violation – previous there was no time limit leaving an open door to all assignments.**

UPDATED TIME LINES AND PROCEDURES CONT.

- **Within 21 days disputes must be filed by either Union after USPS initial national craft determination.**
- **If no dispute is filed, the craft determination will be final and binding on all parties.**
- **Disputes concerning national craft determination may only be initiated at the national level.**

UPDATED TIME LINES AND PROCEDURES CONT.

- **National RI-399 settlements and arbitration awards are binding on all parties nationwide, regardless if a local or regional dispute was filed (original DRP required a local dispute be filed in order to be part of the National award).**
- **Operational changes at the local level will require written notice to the LDRC and RDRC at least 14 days prior.**

UPDATED TIME LINES AND PROCEDURES CONT.

- **Any changes at the national level will require notification to the NDRC at least 45 days prior.**
- **If timely notice is not provided, the impacted union identifies a change in jurisdiction, the assignments will return back to the craft that was performing the work prior until proper notice is provided to the LDRC, RDRC and NDRC.**

CLEANING UP THE DOCKET

- **ALL NATIONAL DISPUTES WERE WITHDRAWN EXCEPT:**

  SPSS - Q11M-6Q-J 15281315, NPMHU APPEAL DATE 8/11/15; Q10C-4Q-J 15291805, APWU APPEAL DATE 8/21/15. ARBITRATED AND AWARD 12/1/20.

  AFCS INPUT SUBSYSTEM, #Q94C-4Q-J 97028616 – APWU APPEAL DATE11/27/96.
  UPGRADES TO AFCS, #Q94C-4Q-J 97028616 – APWU APPEAL DATE 6/27/05.
  AFCS OPERATOR, #Q06M-4Q-J 13009562 – NPMHU APPEAL DATE 10/16/12.
  ARBITRATED AND AWARD 1/31/21

CLEANING UP THE DOCKET

ADUS –APWU Q15C-4Q-J 19341447; NPMHU Q16M -6Q-J 19341277 – ARBITRATED 2/17/21 – BRIEFS EXCHANGED 10/1/21 – NO DECISION AS OF THIS DATE.

USS – APWU Q15C-4Q-J 19383448 – ARBITRATOR SHARNOFF'S DECISION – 5/24/22.

CLEANING UP THE DOCKET

SPSS

SPSS - Q11M-6Q-J 15281315, NPMHU APPEAL DATE 8/11/15; Q10C-4Q-J 15291805, APWU APPEAL DATE 8/21/15. ARBITRATED AND AWARD 12/1/20.

ARBITRATOR JOSEPH M. SHARNOFF ISSUED A DECISION CONFIRMING CLERK CRAFT JURISDICTION OVER OPERATION OF THE SMALL PARCEL SORTING SYSTEM (SPSS) MACHINE.

THE ARBITRATOR ALSO AGREED WITH THE APWU THAT OPERATION 050/055 PRIORITY MAIL DISTRIBUTION SUPPORTS THE ASSIGNMENT OF SINGULATING AND FACING THE MAIL ON SPSS MACHINES TO THE CLERK CRAFT. HE NOTED THAT "DISTRIBUTION OF PRIORITY MAIL" IS CLERK WORK AND THAT EACH OF THE OTHER DUTIES LISTED IN OPERATION 050/055 ARE SUBJECT TO THE "ASTERISK NOTE" WHICH PROVIDES THAT "IN OFFICES WHERE THE TASKS OF OBTAINING EMPTY EQUIPMENT, OBTAINING UNPROCESSED MAIL, LOADING LEDGES, SWEEPING AND CONTAINERIZING IS AN INTEGRAL PART OF THE DISTRIBUTION FUNCTION, THE ENTIRE OPERATION IS A FUNCTION OF THE PRIMARY CRAFT PERFORMING THE DISTRIBUTION."

CLEANING UP THE DOCKET
AFCS

AFCS Input Subsystem, #Q94C-4Q-J 97028616 – APWU appeal date11/27/96.

Upgrades to AFCS, #Q94C-4Q-J 97028616 – APWU appeal date 6/27/05.

AFCS Operator, #Q06M-4Q-J 13009562 – NPMHU appeal date 10/16/12.

These three cases were arbitrated on 12/8 & 12/9/2020.

Arbitrator Sharnoff's award was issued 1/31/22. The APWU'S position was upheld and the operator duties on the AFCS 200 remained in the Clerk Craft.

CLEANING UP THE DOCKET
ADUS/SDUS/SIPS

ADUS –APWU Q15C-4Q-J 19341447; NPMHU Q16M -6Q-J 19341277 – ARBITRATED 2/17/21 – BRIEFS EXCHANGED 10/1/21 – NO DECISION AS OF THIS DATE.

THE USPS HAS DECIDED TO USE THE NATIONAL JURISDICTIONAL DETERMINATION CURRENTLY APPLIED TO THE ADUS FOR THE SDUS AND THE SIPS.

THE SIPS IS THE ADUS WITH OCR CAPABILITY. THAT IS THE ONLY MODIFICATION. THE SIPS HAVE BEEN DEPLOYED IN THE PARCEL SORTING ANNEXES (PSA).

IF IT IS AN ADUS/SDUS IN A FUNCTION 4 OFFICE THEN ALL THE WORK IS CLERK WORK. ONE PERSON INFEED POSITION WITH OPERATOR PACED…."

CLEANING UP THE DOCKET
ADUS/SDUS/SIPS

IF A SIPS IS DEPLOYED TO A FUNCTION 1 FACILITY, THE ADUS DETERMINATION FROM THE FUNCTION 1 PERSPECTIVE WILL BE APPLIED.

IF AN SDUS IS DEPLOYED TO A FUNCTION 4 FACILITY, THE ADUS DETERMINATION FROM THE FUNCTION 4 PERSPECTIVE WILL BE APPLIED; WHEREAS,

WE WERE NOTIFIED OF THE SDUS DISTRIBUTION CLERK POSITION DESCRIPTION. BOTH THE CLERK CRAFT AND THE MAINTENANCE CRAFT HAVE PENDING DISPUTES ON THAT JOB. THE CLERK CRAFT HAS ISSUES WITH THE LEVEL AND THE MAINTENANCE CRAFT FOR THE TYPE OF MAINTENANCE WORK BEING DONE BY THE OPERATOR. THE CURRENT LEVEL OF THIS POSITION IS LEVEL 6 BOTH DISPUTES ARE STILL PENDING.

AS FAR AS STAFFING – THAT IS USUALLY A LOCAL ISSUE THAT DEPENDS ON THE MACHINE, THE VOLUME TO BE RUN ON THE MACHINE, THE HOURS OF RUN TIME ON THE MACHINE, ETC…

CLEANING UP THE DOCKET

ADUS/SDUS/SIPS

THE CLERK CRAFT HAS MAINTAINED THE POSITION THAT THIS JOB IS SOMEWHAT SIMILAR TO THE SENIOR MAIL PROCESSOR. WHEN WE HAD THE CSBCSS IN THE FIELD THERE WOULD BE 1 OR 2 CLERKS AS SENIOR MAIL PROCESSOR AND OTHER CLERKS STAFFING THE MACHINE FOR SWEEPING AND OTHER ALLIED DUTIES.

THE ADUS JURISDICTIONAL DETERMINATION WHICH IS BEING APPLIED TO THE SDUS AND THE SIPS DID NOT SPECIFICALLY PROVIDE ANY ROTATION FOR ERGONOMIC RELIEF IN THE DOCUMENT ITSELF. THAT DETERMINATION SHOULD BE ADDRESSED LOCALLY AT THE LDRC AND THE STAFFING NEEDS LOCALLY DEPENDING ON VOLUME AND RUN TIME.

CLEANING UP THE DOCKET

USS

USS – APWU Q15C-4Q-J 19383448 – ARBITRATOR SHARNOFF'S DECISION – 5/24/22.

ARBITRATOR SHARNOFF UPHELD THE POSTAL SERVICE'S 2019 DETERMINATION THAT ALL OPERATIONS ON THE USS SHOULD BE ASSIGNED TO THE MAIL HANDLERS, EXCEPT FOR THE *SCAN WHERE YOU BAND* OPERATION WHICH HE DETERMINED TO BE PROPERLY ASSIGNED TO THE CLERK CRAFT.

HE AGAIN CONFIRMED THE "HEAVY BURDEN" FOR THE CHALLENGING UNION TO PROVE THAT THE POSTAL SERVICE ACTED IN A MANNER THAT WAS ARBITRARY, CAPRICIOUS, OR UNREASONABLE.

DESPITE BEING UNABLE TO GAIN NEW WORK ON THE USS, THIS DECISION AFFIRMED THE CLERK CRAFT AS THE PRIMARY CRAFT FOR THE OPERATION OF AUTOMATED *SCAN WHERE YOU BAND* UNITS WHEN ATTACHED TO A USS.

CLEANING UP THE DOCKET CONT.

List of cases to be referred to Art. 15

- **Filed prior to 9/1/17**
- **Other contractual issues – Article 14 safety issues, Article 12 Excessing Issues, Cross –Craft Dispute Other Crafts (Letter Carriers, Rural Carrier, and Maintenance Craft).**

CLEANING UP THE DOCKET CONT.

- **The Postal Service representative is responsible for making sure these cases are added to the appropriate Article 15 docket to be scheduled and resolved.**

- **The representatives on the RDRCs should notify their respective local parties impacted by the cases being withdrawn so the local parties can identify any related local cases tied to the case being withdrawn and withdraw those as well.**

CLEANING UP THE DOCKET CONT.

Paragraph 10 of the MOU

- **National, Regional, and Local disputes filed after 9/1/17 and referred to RI-399 and remain pending as of 6/26/18 sent to the NDRC.**
- **Jurisdiction will be based on Revised 9/1/17 Local Inventories.**

CLEANING UP THE DOCKET CONT.

Paragraph 10 of the MOU Cont.

- **Art. 7.2 filed after 9/1/17 and referred to RI-399 and remain pending as of 6/26/18 sent to the NDRC.**
- **Remaining issue of remedy will be processed in Art. 15 of appropriate CBA (APWU or NPMHU).**

CLEANING UP THE DOCKET CONT.

- **Art. 7.2 filed after 6/26/18 may be referred to RI-399 by USPS or non-grieving Union at Step 3 only.**
- **Art. 7.2 grievances filed by either Union in Article 15 after 6/26/18 will be sent to the other Union at Step 3 by the USPS.**
- **The non-grieving Union will have 21 days to refer to RI-399 if determined to be jurisdictional.**

CLEANING UP THE DOCKET CONT.

- **Failure to refer within the 21 days is a forfeiture of the right to include intervening in arbitration**

- **USPS referral to RI-399 at Step 3 done within time limits of Step 3 denial, failure to do so is a forfeiture of the right to do so later.**

UPDATED TIME LINES AND PROCEDURES

Paragraph 11 of the MOU

- **Operational changes at local level require 14 day notice to LDRC and RDRC prior to implementation.**

- **New work – new or consolidated facilities requires 45 day notice to both national Unions, RDRC and LDRC of the impacted facilities.**

UPDATED TIME LINES AND PROCEDURES CONT.

- **New work, new or consolidated facilities, or operational changes at the national level will require 45 calendar days to the NDRC.**
- **Failure to provide the timely notice, the assignments will returned back to the craft performing the work until the 14 day or 45 day proper notice is provided.**

UPDATED TIME LINES AND PROCEDURES CONT.

- **A dispute must be filed within 21 days at the LDRC.**
- **A national dispute must be filed within 21 days at the NDRC – otherwise the failure to do so the craft determination will be final and binding.**
- **The NDRC will have 60 days to attempt to resolve.**
- **If resolved, a tripartite settlement agreement signed by all parties.**

UPDATED TIME LINES AND PROCEDURES CONT.

- If unresolved – a tripartite decision paper setting forth position of each party.
- The moving Union may appeal to national RI-399 arbitration within 21 days.
- Disputes concerning national craft determinations can only be initiated at the national level.
- National RI-399 settlements or awards are final and binding on all parties at all levels.
- National disputes appealed to arbitration will be arbitrated in 6 months.
- Liability will be determined in the Art. 15 process.

UPDATED LOCAL INVENTORIES

Paragraph 7 – Updated Local Inventories Status Quo by local jurisdictional practices as of 9/1/17

Exceptions: Contrary to national level craft determination previously issued by USPS:

- **A tripartite national or local jurisdictional settlement signed by the 3 parties,**
- **A national or regional tripartite arbitration award determining jurisdiction, or**
- **An existing inventory signed by all 3 parties.**

UPDATED LOCAL INVENTORIES CONT.

Deadline for revised inventories is 12/31/18.

- **The revised inventories will be binding on all 3 parties at all levels.**
- **A revised inventory for all facilities covered by RI-399 without mail handlers as of 9/1/17 reflecting all operations are the Clerk Craft.**
- **Facilities where mail handlers have been excessed prior to 9/1/17, timely grievance filed addressing the excessing.**
- **No excessing grievance will be settled solely to change jurisdiction.**

UPDATED LOCAL INVENTORIES CONT.

- **The NDRC currently working on the process, updated forms and instructions to the LDRCs.**
- **The local parties are encouraged to complete the Revised 9/1/17 Local Inventories.**
- **Failure to complete locally – will be completed by the RDRC or NDRC reps.**

REQUIRED RI-399 MEETINGS

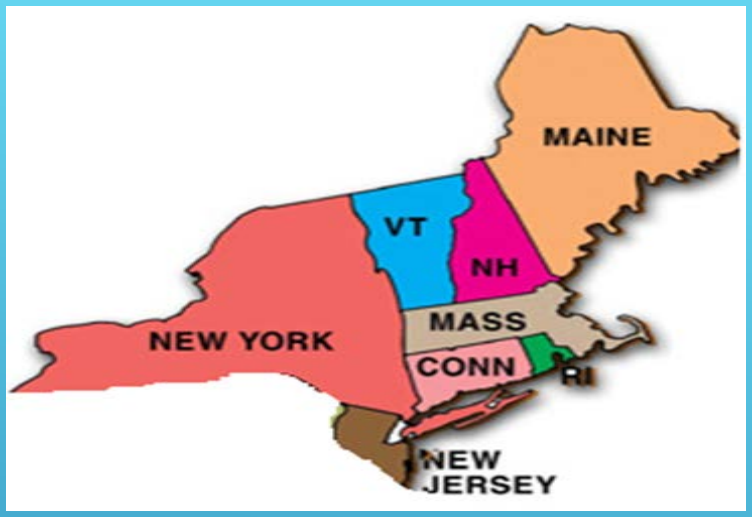
- **LDRCs required to meet 10:00am last Wednesday of the month.**
- **RDRCs required to meet 10:00am last Wednesday of every calendar quarter.**
- **NDRC required to meet last Wednesday of every calendar quarter.**
- **NDRC required to meet on a semiannual basis on Tech and Mech, or more frequently as necessary.**

NOTE: See Q&A 16 in the 8/10/18 tripartite Updated RI-399 MOU – alternative meetings.

REGIONAL DISPUTE RESOLUTION COMMMITTEE (RDRC) REPRESENTATIVES



Bernie Timmerman



Connecticut
Maine
Massachusetts
New Hampshire
New York
Northern half of New Jersey
Rhode Island
Vermont



John Jackson



Kentucky
Maryland
Southern half of New Jersey
North Carolina
Ohio
Pennsylvania
South Carolina
Virginia
Washington D.C.
West Virginia



Marty Mater



Colorado
Kansas
Illinois
Indiana
Iowa
Michigan

Minnesota
Missouri
Nebraska
North Dakota
South Dakota
Wisconsin
Wyoming



Charles Tillman



Alabama

Arkansas

Florida

Georgia

Louisiana

Mississippi

Oklahoma

Tennessee

Texas



Brian Dunn



Alaska
Arizona
California
Hawaii
Idaho
Montana
New Mexico
Nevada
Oregon
Utah
Washington



ADDITIONAL INFORMATION

Copies of the appeal forms
for all levels
can attained from your
RDRC Representative.

Find Additional Information on RI-399 at:

https://apwu.org/ri-399-jurisdictional-disputes

ARE THERE
ANY QUESTIONS!!!

Thanks For Your Attention
and for Your Service
to the Membership!